

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	PLAINTIFF'S MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling:

No opposition filed.

The court in its discretion finds that preference would be in the interests of justice and a sufficient showing has been made by Plaintiff.

Motion for Preferential Trial Setting pursuant to CCP 36(e) is GRANTED.

Trial call on 11.06.26. Parties directed to read and review Riverside Local Rule 3401 and the PS1 Rules governing Trial & Law and Motion posted on the Court's website incorporated by reference into this order. Failure to comply with these rules may result in monetary, issue, or other sanctions against counsel and parties jointly and severally.

Any jury deposit or fee waiver shall be submitted by end of business 7.21.26. Failure to do so will result in waiver of right to a jury trial.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	DEFENDANTS' MOTION FOR PROTECTIVE ORDER

Tentative Ruling: CCP § 2030.030(a) provides that, unless otherwise authorized, a party may propound a maximum of 35 SROGs. Similarly, CCP § 2033.030(a) establishes a presumptive limit of 35 RFAs. A party may exceed those limits by serving a declaration under CCP §§ 2030.050 and 2033.050. Section 2030.050 requires the declaration to state "each factor described in Section 2030.040 that is relied on, as well as the reasons why any factor relied on is applicable to the lawsuit." (CCP § 2030.050.) Similarly, section 2033.050 requires the declaration to state "the reasons why the complexity or the quantity of issues in the lawsuit warrants this number of requests for admission." (CCP § 2033.050.)

The factors set forth in section 2030.040(a) include: (1) "[t]he complexity or the quantity of the existing and potential issues in the particular case"; (2) "[t]he financial burden on a party entailed in conducting the discovery by oral deposition"; and (3) "[t]he expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought." (CCP § 2030.040(a)(1)–(3).) The same factors apply to RFAs under section 2033.040(a). (CCP § 2033.040(a) ["any party . . . may request a greater number of [RFAs] . . . if the greater number is warranted by the complexity or the quantity of the existing and potential issues in the particular case"].)

Once the responding party moves for protective order challenging the number as unwarranted, the propounding party bears the burden of justifying the number of SROGs and RFAs. (CCP §§ 2030.040(b); 2033.040(b).) The court may make any order justice requires to protect any party from unwarranted annoyance, embarrassment, or